EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 59543/13
Mubariz Arshad oglu TAGIYEV
and Sayyad Shirin oglu MAMMADOV
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 3 September 2020 as a Committee composed of:

Ganna Yudkivska, *President,*
Lado Chanturia,
Anja Seibert-Fohr, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 2 September 2013,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The first applicant, Mr Mubariz Arshad oglu Tagiyev, was an Azerbaijani national who was born in 1965. The second applicant, Mr Sayyad Shirin oglu Mammadov, is an Azerbaijani national who was born in 1967. They were represented by Mr I. Aliyev, a lawyer based in Azerbaijan.

The applicants' complaints under Article 11 of the Convention concerning the freedom of association as well as under Article 34 concerning the right of individual application without hindrance were communicated to the Azerbaijani Government ("the Government").

On 10 October 2019 the first applicant's wife, Ms Tagiyeva Vusala Safarali gizi, informed the Registry that the first applicant had died and that his application to the Court would not be pursued. On the same date the second applicant informed the Registry that he wanted to withdraw the application to the Court since the association in question had been registered by the authorities.

THE LAW

In the light of the foregoing, the Court concludes that the first applicant's heir and the second applicant may be regarded as no longer wishing to pursue the application (Article 37 § 1 (a) of the Convention). Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and the Protocols thereto which require the continued examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 24 September 2020.

Liv Tigerstedt	Ganna Yudkivska
Acting Deputy Registrar	President